

IN THE SUPREME COURT OF INDIA

RASHMI KANT VIJAY CHANDRA & ORS. v. BAIJNATH CHOUBEY & COMPANY

Citation: 2024 INSC 688 | Civil Appeal No. 10452 of 2024

Bench: Supreme Court of India

Date of Judgment: September 13, 2024

JUDGMENT & LEGAL PRINCIPLES

This civil appeal arises from an eviction suit governed by tenancy laws and concerns the scope of High Court jurisdiction under Section 100 of the Code of Civil Procedure, 1908 (CPC) when dealing with second appeals against concurrent or factual findings of First Appellate Courts.

FACTUAL & PROCEDURAL HISTORY

The plaintiffs (appellants) instituted an eviction suit against the defendant-firm alleging illegal sub-letting without consent. The First Appellate Court decreed the suit in favor of the landlords after examining evidence of sub-tenancy. However, the High Court of Calcutta reversed the decree in second appeal without explicitly framing a substantial question of law.

RATIO DECIDENDI & COURT FINDINGS

- Section 100 CPC Mandate:** The Supreme Court held that the High Court committed a manifest error of law by disturbing factual findings of the First Appellate Court without formulating and deciding a substantial question of law as statutorily required under Section 100 CPC.
- Estoppel & Procedural Objections:** The Court observed that a defendant-partner who appears and participates in proceedings following notice cannot subsequently challenge non-joinder of other partners if such objection was not raised in the initial written statement.
- Ground of Sub-letting:** The Court upheld the First Appellate Court's finding that unauthorized creation of sub-tenancy entitled the landlord to an eviction decree under applicable premises tenancy legislation.

ORDER & DISPOSITION

The Supreme Court allowed the appeal, set aside the High Court's judgment, and restored the decree of eviction in favor of the plaintiff-appellants.